

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #10	CCRB Case #: 201801791	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/05/2018 10:25 PM	Location of Incident: West 191st Street and St. Nicholas Avenue and the 34th Precinct stationhouse	18 Mo. SOL 9/5/2019	Precinct: 34		
Date/Time CV Reported Mon, 03/05/2018 11:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/05/2018 11:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Louis Dambrosio	04008	932513	034 DET
2. POM James Gilson	08085	932711	034 DET
3. POM Kevin Ferguson	14585	960527	034 PCT
4. POM Sicelin Ortiz	15825	952073	034 PCT
5. POM Edward Oconnell	24838	916333	034 PCT
6. Officers			034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jose Salas	03754	941831	034 PCT
2. POM Daniel Snyder	18302	961310	034 PCT
3. POM Joseph Duernberger	18593	958529	034 PCT
4. POM Daniel Wynne	11292	962083	034 PCT
5. POM Roopram Tirlokhi	10539	962136	034 PCT
6. POM Samuel Byun	07129	960300	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM James Gilson	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio drew his gun.	C . Exonerated
D . POM James Gilson	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson drew his gun.	D . Exonerated
E . POM Edward Oconnell	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer Edward Oconnell drew his gun.	E . Exonerated
F . Officers	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, officers drew their guns.	F . Exonerated

Officer(s)	Allegation	Investigator Recommendation
G . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio damaged § 87(2)(b)'s property.	G . Unsubstantiated
H . DT3 Louis Dambrosio	Discourtesy: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio spoke discourteously to § 87(2)(b)	H . Exonerated
I . POM Sicelin Ortiz	Discourtesy: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer Sicelin Ortiz spoke discourteously to § 87(2)(b)	I . Unsubstantiated
J . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio frisked § 87(2)(b)	J . Exonerated
K . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio searched § 87(2)(b)	K . Substantiated
L . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio frisked § 87(2)(b)	L . Exonerated
M . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio frisked § 87(2)(b)	M . Exonerated
N . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio frisked § 87(2)(b)	N . Exonerated
O . DT3 Louis Dambrosio	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	O . Substantiated
P . POM James Gilson	Abuse: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	P . Substantiated
Q . POM Kevin Ferguson	Abuse: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson did not process § 87(2)(b)'s complaint regarding officers.	Q . Substantiated
R . POM Kevin Ferguson	Abuse: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson refused to provide his name to § 87(2)(b)	R . Unsubstantiated
S . POM Kevin Ferguson	Abuse: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson refused to provide his shield number to § 87(2)(b)	S . Unsubstantiated

Case Summary

On March 5, 2018, § 87(2)(b) filed this complaint on behalf of himself, § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) via the CCRB's call processing system.

On March 5, 2018, at 10:25 p.m., § 87(2)(b) was seated in the right rear passenger seat of a red Dodge Durango, being operated by § 87(2)(b) when the vehicle was pulled over on Saint Nicholas Avenue, just past West 193rd Street, in the Bronx, by Detective Louis D'Ambrosio and Police Officer James Gilson, both of the 34th Precinct Detective Squad (**Allegations A and B: Abuse of Authority – Vehicle stop, exonerated**). § 87(2)(b) was seated in the front passenger seat and § 87(2)(b) in the back-left passenger seat. When § 87(2)(b) looked out of the car, Det. D'Ambrosio, PO Gilson, PO O'Connell, and the other responding officers had their guns drawn (**Allegations C, D, E, and F: Abuse of Authority – Gun drawn, exonerated**). As the officers approached the vehicle, Det. D'Ambrosio hit the back-glass panel of the rear passenger side window, allegedly causing a scratch on the window, and said, "Put your fucking windows down! Put your fucking windows down!" (**Allegation G: Abuse of Authority - Property Damage, unsubstantiated**) (**Allegation H: Discourtesy – Word, exonerated**). § 87(2)(b) told the officers that they were wrong in stopping the vehicle, and in response Police Officer Sicelin Ortiz allegedly said, "Shut the fuck up" (**Allegation I: Discourtesy – Word, unsubstantiated**). Det. D'Ambrosio took each occupant out of the vehicle one by one and frisked them (**Allegations J, L, M, and N: Abuse of Authority – Frisk, exonerated**). While frisking § 87(2)(b) Det. D'Ambrosio searched his pockets (**Allegation K: Abuse of Authority - Search of person, substantiated**).

After each individual was taken out of the vehicle, Det. D'Ambrosio and PO Gilson searched the vehicle (**Allegations O and P: Abuse of Authority – Vehicle search, substantiated**). After the officers searched the vehicle, the officers explained that there was a shooting in the area earlier that night and they allowed the individuals to leave.

After leaving the location, § 87(2)(b) and § 87(2)(b) went to the 34th Precinct stationhouse to file a complaint. There, the individuals spoke with Police Officer Kevin Ferguson who refused to take their complaint against Det. D'Ambrosio and PO Gilson (**Allegation Q: Abuse of Authority – Refusal to process civilian complaint, substantiated**). Before leaving the stationhouse, § 87(2)(b) asked for PO Ferguson's name and shield number; to which PO Ferguson responded by saying the individuals did not need that information because the CCRB would "figure it out" (**Allegation R: Abuse of Authority – Refusal to provide name, unsubstantiated**) (**Allegation S: Abuse of Authority – Refusal to provide shield number, unsubstantiated**). The individuals then left the stationhouse.

Relevant video footage was provided to the investigation by § 87(2)(b) and the NYPD (**Board Review 16**) (**Board Review 18**) (**Board Review 19**) (**Board Review 20**) (**Board Review 21**).

Additional video captured by § 87(2)(b)'s cellphone was provided to the investigation; however, the videos did not capture FADO allegations (**Board Review 34**) (**Board Review 35**). Similarly, additional video captured by and NYPD BWCs was provided to the investigation; however, the videos did not capture FADO allegations (**Board Review 36**) (**Board Review 37**) (**Board Review 38**) (**Board Review 39**) (**Board Review 14**). Video surveillance footage was also obtained by the CCRB's field team from La Bodega 193 that shows the civilians and their vehicle, but it did not depict the incident under investigation (**Board Review 30**).

Neither § 87(2)(b) or § 87(2)(b) were issued summonses or arrested during the course of or as a result of the incident under investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio stopped the vehicle in which § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson stopped the vehicle in which § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio drew his gun.

Allegation (D) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson drew his gun.

Allegation (E) Abuse of Authority: At West 191st Street and Saint Nicholas Avenue in Manhattan, Police Officer Edward O'Connell drew his gun.

Allegation (F) Abuse of Authority: At West 191st Street and Saint Nicholas Avenue in Manhattan, officers drew their guns.

Allegation (H) Discourtesy: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio spoke discourteously to § 87(2)(b)

It is undisputed that Det. D'Ambrosio and PO Gilson stopped the vehicle solely because they believed it may have been occupied by the subject of their criminal investigation.

During his CCRB statement, § 87(2)(b) said he was in the back-passenger seat of § 87(2)(b)'s red Dodge Durango, while § 87(2)(b) and § 87(2)(b) were inside of NY Deli and Grocery, located at West 191st Street and Saint Nicholas Avenue (**Board Review 01**). After his friends re-entered the vehicle, § 87(2)(b) drove the vehicle on Saint Nicholas Avenue from West 191st Street to West 193rd Street; at which time, Det. D'Ambrosio and PO Gilson initiated the turret lights of their unmarked vehicle and stopped the vehicle. As the officers exited the unmarked vehicle and the Durango, they had their guns out and "pointed" at the vehicle and Det. D'Ambrosio said, "Put your fucking windows down! Put your fucking windows down!"

Neither § 87(2)(b) nor § 87(2)(b) cooperated with the investigation.

Det. D'Ambrosio stated that on March 5, 2018, at 8:30 p.m., he received a radio run regarding shots fired near West 193rd Street and Saint Nicholas Avenue in Manhattan (**Board Review 02**). The initial radio run did not contain specifying information. Upon arriving to the location with PO Gilson, an NYPD officer, whose name he did not recall, confirmed that bullet shell casings were found on the ground. Det. D'Ambrosio was informed by Lieutenant Carlos Peralta and his operator on that day, identified by the investigation as PO Ferguson, both of the 34th Precinct, that a witnessing livery cab driver was interviewed before their arrival and that the witness wished to stay anonymous. They informed Det. D'Ambrosio that the witness saw a red SUV driving southbound on Saint Nicholas Avenue, which then made a U-turn near West 192nd Street and then "fled" northbound; at which time, the witness heard the gun shots. The witness was no longer at the scene by the time Det. D'Ambrosio and PO Gilson arrived.

After receiving the information, Det. D'Ambrosio and PO Gilson began to canvass the area for video footage. They visited an eatery, Popeyes, located at the intersection of West 191st Street and Saint Nicholas Avenue. Upon viewing the eatery's video surveillance system, Det.

D'Ambrosio observed a red Dodge Durango driving south bound on Saint Nicholas Avenue and make a U-turn to head north-bound. Det. D'Ambrosio did not document or recall what time frame of the video he watched. He was not able to see a license plate, determine the year of the vehicle, or the number of occupants while watching the video. He did not see any indication that gun shots came from the vehicle while it was in the frame of the camera. Det. D'Ambrosio did not recover a copy of the video footage that he found.

The officers continued to canvass for video footage for another 10 minutes; however, they did not find any additional relevant video footage. While walking south on Saint Nicholas Avenue, back to their unmarked vehicle, the officers saw a red Dodge Durango parked on the Southeast corner of West 192nd Street and Saint Nicholas Avenue. PO Gilson immediately entered the driver seat and Det. D'Ambrosio entered the passenger seat of their vehicle, located a few vehicles behind the Durango. They spoke and confirmed that the vehicle looked like the vehicle they saw in the surveillance footage, and decided that they would stop the vehicle because the eye-witness stated that they saw a red SUV at the scene that made the U-turn (as mentioned above), they saw a red Dodge Durango make the same U-turn as described via the surveillance footage, and the incident took place just two hours before and one block away. The officers remained in their vehicle behind the Durango to observe any activity. During that time, the officers saw two males enter the rear driver side of the vehicle. From his positioning, Det. D'Ambrosio was unable to see into the vehicle. Minutes after entering the unmarked vehicle, the red Dodge Durango began to drive northbound on Saint Nicholas Avenue. At one point, Det. D'Ambrosio was unsure if it was before or after the Durango began to move, a call for additional units was put over. As the vehicle drove North, PO Gilson followed for approximately five blocks; at which, point the officers saw backup marked units and the stop was initiated. Det. D'Ambrosio exited from the passenger side of his vehicle and approached the same side of the Durango. He did not recall if he drew his gun, if PO Gilson had his gun drawn, or if the uniformed officers who arrived drew their guns upon approaching the Durango. As he approached, he made commands to the driver of the vehicle to put all windows down and to all occupants to place their hands on the dashboard/headrest in front of them. When asked if he said, "Put the fucking windows down! Put the fucking windows down" as he approached the vehicle, Det. D'Ambrosio said that he may have because "[he] curses." He did not recall if he made that statement, but stated that if he did it would have been to gain immediate compliance from the occupants.

On March 6, 2018, Det. D'Ambrosio prepared DD5 entries in relation to the shots fired that occurred the day prior (**Board Review 03**). In "Follow up number 1," Det. D'Ambrosio noted that upon arriving at the incident location, he was informed by PO Ferguson and Lieutenant Peralta that an interviewed witness stated that they saw a "truck" driving southbound on Saint Nicholas Avenue, make a U-turn at West 192nd Street; after which, he heard an individual from that vehicle fire four shots into the air. The witness saw four occupants in the vehicle. He also noted in the same entry that he conducted a video canvass, which resulted in him finding video footage from a Popeyes, depicting a red Dodge Durango driving southbound on Saint Nicholas Avenue, make a U-turn at West 192nd Street and then "flee" northbound.

In "Follow up number 2," which Det. D'Ambrosio prepared on March 14, 2018, he noted that during the same conversation, Lieutenant Peralta and PO Ferguson informed him that the individual who fired the shots from the vehicle was a light skinned Hispanic male, in his twenties.

PO Gilson provided a statement to the CCRB that was consistent with Det. D'Ambrosio's statement (**Board Review 04**). However, he stated that he did draw his gun while approaching the

Durango, but he held it in a “ready position” and he did not point it at the Durango. He did so because he suspected the occupants of the vehicle may have had a weapon. He did not recall seeing Det. D’Ambrosio or any other officer with their gun drawn. PO Gilson holstered his gun after he was able to see into the vehicle and the occupants showed him their hands.

PO O’Connell stated that he responded to the initial incident location, where he learned that that a witness observed the shots fired from a red Dodge vehicle with multiple occupants, which fled the scene (**Board Review 05**). PO O’Connell also responded to Det. D’Ambrosio and PO Gilson’s request for additional units. He approached the car stop under investigation at corner of the vehicle at the front driver side. When asked initially, PO O’Connell did not recall having his or seeing Det. D’Ambrosio, PO Gilson, or any other officer have their guns drawn.

PO O’Connell was presented BWC video file 201801791_20180816_0834A_DM, PO Ferguson’s BWC video (**Board Review 21**). Between 00:00 and 00:10, the video depicts PO O’Connell with his gun drawn and down at his side. When asked during the interview why his gun was drawn at that time, PO O’Connell stated he did so because of safety concerns and the possibility of the occupants having a gun.

PO Ferguson, who was also interviewed by the investigation, stated that he was present for the interview of a witness at the scene of the shooting (**Board Review 06**). He did not recall the conversation in detail, but did recall that the witness stated the shots were fired from a red jeep-like vehicle and the witness provided a description of the individual. PO Ferguson did not recall the description, but he wrote it down on a fly page in his memo book (see below). After responding to the initial incident location, PO Ferguson did not recall seeing Det. D’Ambrosio, PO Gilson, or any other officer with their gun drawn.

In PO Ferguson’s memo book, he noted on a fly page that he received the description of a White-Hispanic Male, in his 20s, wearing a black shirt and black hat (**Board Review 31**).

On March 5, 2018, at 8:25 p.m., a 9-1-1 call was made by an unknown caller who witnessed the shooting related to this investigation (**Board Review 07**). Event #§ 87(2)(b) notes that the witness observed three-gunshots fired from the back window of a “red jeep” at West 193rd Street and Saint Nicholas Avenue in Manhattan. The vehicle had three to four male occupants.

At the immediate start of Police Officer Samuel Byun’s BWC footage, § 87(2)(b) depicted as being a light skinned Hispanic male, wearing a black sweater and black hat, matching the description noted on the fly page of PO Ferguson’s memo book (**Board Review 20**).

Other than Det. D’Ambrosio, PO Gilson, and PO O’Connell, no other officers are clearly seen with their gun drawn in any of the BWC footage obtained by the investigation.

People v. Reid, 135 A.D.2d 753 (**Board Review 08**). Upon observing a vehicle close in proximity to the time and place of the commission of a crime that matched the description of the vehicle and its occupants provided by a witness of the crime, officers were justified in stopping the vehicle because reasonable suspicion was present.

Patrol Guide Procedure 221-01 (**Board Review 32**). An officer’s decision to draw a firearm should be based on an articulable belief that the potential for serious physical injury is present.

People v Argyris, 24 N.Y.3d 1138 (**Board Review 09**). In an instance where officers had reason to stop a vehicle with the belief that the occupant(s) may have a gun, the act of approaching the vehicle with guns drawn was lawful due to a reasonable concern for their safety.

Patrol Guide Procedure 203-10 (**Board Review 13**). Using discourteous remarks while in contact with the public is prohibited conducted.

Disciplinary Case No. 2017-17276 (Board Review 33). Language which would be inappropriate for the vast majority of police-citizen encounters may be excused when used as a means of verbal suasion intended to dissuade a suspect from active resistance.

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, D, E, F, and H** be *exonerated*.

Allegation (G) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio damaged § 87(2)(b)'s property.

During his CCRB interview, § 87(2)(b) stated that when Det. D'Ambrosio got to the back-passenger window of the vehicle, he hit the back panel of the window with a blunt object (**Board Review 01**). At the conclusion of his CCRB statement, § 87(2)(b) provided a cell phone recording that he took while in the 34th Precinct stationhouse after the vehicle stop on March 5, 2018 (**Board Review 18**). At the end of the recording, § 87(2)(b) states that his vehicle was scratched. When asked about that statement, § 87(2)(b) stated that the scratch was caused by Det. D'Ambrosio hitting the back window.

As mentioned above, the other three occupants of the vehicle, including § 87(2)(b) who owned the vehicle, did not participate in the investigation. Thus, the CCRB was unable to obtain any photos or documentation supporting or disputing **Allegation G**.

Det. D'Ambrosio denied using any blunt object to hit the back-passenger window of § 87(2)(b)'s red Dodge Durango; however, he did state that while approaching the vehicle he had a flashlight in his hand (**Board Review 02**).

All additional officers interviewed provided a statement consistent with Det. D'Ambrosio.

Det. D'Ambrosio was not wearing a BWC on the day of the incident. None of the 34th Precinct uniformed officers with BWC were near Det. D'Ambrosio to capture the moment the alleged action occurred.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be *unsubstantiated*.

Allegation (I) Discourtesy: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer Sicelin Ortiz spoke discourteously to § 87(2)(b)

It is undisputed that PO Ortiz engaged in a brief exchange with an occupant, during which he told the person to stop speaking.

§ 87(2)(b) stated that after Det. D'Ambrosio instructed the occupants to put their windows down, § 87(2)(b) asked what was going on. In response, PO Ortiz told § 87(2)(b) to, "Shut the fuck up" (**Board Review 01**).

Neither § 87(2)(b) nor § 87(2)(b) cooperated with the investigation.

During his CCRB interview, PO Ortiz stated that while at the scene he did not take any actions other than standing near the stopped vehicle as back up. While standing there, § 87(2)(b) began to “say something,” so PO Ortiz told him to be quiet. He did not recall what § 87(2)(b) said and he was unable to provide any additional information regarding their conversation. He did not tell any of the occupants to, “Shut the fuck up,” at any point during the interaction. He did not speak with any of the occupants or say anything aloud at any other point in the interaction (**Board Review 11**).

PO Gilson did not hear PO Ortiz or any other officer say, “Shut the fuck up” (**Board Review 04**).

Police Officer Daniel Snyder, who stated that he stood on the driver side of the Durango approximately five to 10 feet away, did not hear PO Ortiz or any other officer say, “Shut the fuck up” (**Board Review 10**).

Between 21:58:27 and 21:59:05, PO Snyder’s BWC captured the interaction in question between PO Ortiz and § 87(2)(b) however, because of the wind conditions and other factors, the content of the conversation cannot be clearly understood (**Board Review 16**).

At time stamp 21:57:09 of Police Officer John Durenberger’s BWC footage, § 87(2)(b) seated in the back-driver seat, tells the officers that they were unlawfully stopping the vehicle (**Board Review 19**). At 21:58:04, § 87(2)(b) acknowledges that there were shots fired in the area shortly before and he stated that he knew why they were being stopped. PO Gilson is heard telling § 87(2)(b) that if he waits five minutes, he will be informed of all the details. § 87(2)(b) then continues to say that the officers were wrong to stop them. In response, PO Ortiz says, “Listen, Listen.” § 87(2)(b) immediately says, “No you shhh, you shh. I know my law, you don’t have to tell me.” PO Ortiz is simultaneously heard explaining that the officers want to tell the occupants what is going on and will if § 87(2)(b) waits. § 87(2)(b) then says, “You don’t have to tell me to shut up. You shut up.” PO Gilson adds that he wants to allow the individuals to leave, but needs § 87(2)(b) to focus on and speak with him. That conversation then ends, and at 21:59:15, PO Ortiz is depicted standing away from the vehicle. § 87(2)(b) did not make any statements or ask what was going on during that time.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation I** be *unsubstantiated*.

Allegation (J) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D’Ambrosio frisked § 87(2)(b)

Allegation (K) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D’Ambrosio searched § 87(2)(b)

Allegation (L) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D’Ambrosio frisked § 87(2)(b)

Allegation (M) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D’Ambrosio frisked § 87(2)(b)

Allegation (N) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio frisked § 87(2)(b)

§ 87(2)(g)

It is also undisputed that during the vehicle stop, Det. D'Ambrosio frisked all occupants of the vehicle.

§ 87(2)(b) stated that after approaching the vehicle and re-holstering his gun, Det. D'Ambrosio took § 87(2)(b) out of the vehicle to frisk him. While doing so, Det. D'Ambrosio also placed his hands into the right and left pockets of his jacket. He then took each occupant out of the vehicle one-by-one and frisked them. § 87(2)(b) only saw Det. D'Ambrosio frisk § 87(2)(b). After each individual was frisked, the occupants were taken to the back of § 87(2)(b)'s vehicle and were kept there.

Neither § 87(2)(b) nor § 87(2)(b) cooperated with the investigation.

Det. D'Ambrosio stated that after stopping and approaching the vehicle and being able to clearly see the hands of the occupants, he began to take each occupant out one-by-one to frisk them for weapons. While at the vehicle and before taking the occupants out, Det. D'Ambrosio did not make any additional observations that increased his belief that the occupants in the vehicle were associated with the shots fired incident that he was investigating. PO D'Ambrosio first took out the front passenger, then the occupant of back-passenger side seat, the occupant of the back-driver side seat, and the driver to frisk them. He did so for officer safety and to ensure that none of the occupants in the vehicle had weapons. After taking § 87(2)(b) out of the vehicle, he did not make any observations on § 87(2)(b)'s person that lead him to believe that he was armed or involved in the crime. Det. D'Ambrosio did not search § 87(2)(b)'s pockets. Det. D'Ambrosio took the occupants out of the car to frisk them based on the information that he provided regarding his decision to stop the vehicle on suspicion that it was connected to an ongoing criminal investigation of a gun crime. When asked during his CCRB interview, Det. D'Ambrosio stated that all frisks yielded negative results and he did not express that he felt any hard objects.

PO Gilson provided a statement consistent with Det. D'Ambrosio (**Board Review 04**).

Police Officer Samuel Byun's BWC camera captured Det. D'Ambrosio's interaction with § 87(2)(b) at the back-right corner of the Durango. Det. D'Ambrosio is depicted frisking § 87(2)(b)'s upper body and waist area; after which, he places his left hand into the left jacket pocket and left pants pocket of § 87(2)(b). This portion can be found between timestamps 21:58:58 and 21:59:17 of the video (**Board Review 20**).

People v. Argyris, 24 N.Y.3d 1138 (Board Review 09). In an instance where officers had reason to stop a vehicle with the belief that the occupant(s) may have a gun, a reasonable concern for their safety is present.

People v. Mundo, 99 N.Y.2d 55 (Board Review 15). An officer acting on reasonable suspicion that criminality is afoot based on the articulable basis to fear for their own safety may intrude upon the person only to the extent that is necessary to protect themselves from harm.

§ 87(2)(g)

it is recommended that **Allegations J, L, M, and N** be *exonerated*.

§ 87(2)(g)

It is recommended that **Allegation K** be *substantiated*.

Allegation (O) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Detective Louis D'Ambrosio searched the vehicle in which

§ 87(2)(b)

§ 87(2)(b)

and § 87(2)(b)

were occupants.

Allegation (P) Abuse of Authority: At West 191st Street and St. Nicholas Avenue in Manhattan, Police Officer James Gilson searched the vehicle in which

§ 87(2)(b)

and § 87(2)(b)

were occupants.

§ 87(2)(g)

It is also undisputed that Det. D'Ambrosio and PO Gilson searched the vehicle.

§ 87(2)(b) stated that after the individuals were taken out of the vehicle, frisked one by one, and placed at the back of the vehicle, Det. D'Ambrosio and PO Gilson then searched the entire vehicle (**Board Review 01**).

Neither § 87(2)(b) nor § 87(2)(b) cooperated with the investigation.

During his CCRB statement, Det. D'Ambrosio stated that after approaching the vehicle he asked the occupants who the vehicle belonged to. § 87(2)(b) stated that it was his vehicle, so Det. D'Ambrosio asked § 87(2)(b) where he was coming from and going. While speaking at the window of the vehicle, he did not make any observations that lead him to believe that there were any guns or other weapons in the vehicle. Det. D'Ambrosio did not articulate any other observations or reasons to believe that the occupants in the vehicle were in fact associated with the shots fired that he was investigating. Det. D'Ambrosio then escorted the individuals out of the car, he frisked them, and placed them at the back of the vehicle without incident. Det. D'Ambrosio then began to search the vehicle with PO Gilson. The results of the vehicle search were negative (**Board Review 02**).

PO Gilson provided a statement consistent with Det. D'Ambrosio. PO Gilson also stated that while at the window of the vehicle, he did not see any indication that there were any firearms in the vehicle. He did not express additional observations or beliefs that furthered his suspicion the occupants of the vehicle were involved in the earlier shooting (**Board Review 04**).

§ 87(2)(g)

People v. Mundo, 99 N.Y.2d 55 (**Board Review 15**). Absent probable cause, it is unlawful for officers to enter and search a stopped vehicle once the occupants have been removed and frisked without incident because any immediate threat to the officers' safety has been eliminated.

§ 87(2)(g)

It is therefore recommended that **Allegations O and P** be *substantiated*.

Allegation (Q) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson did not process

§ 87(2)(b)

s complaint regarding officers.

It is undisputed that PO Ferguson did not take § 87(2)(b) s complaint against police officers at the 34th Precinct stationhouse.

§ 87(2)(b) stated that after the vehicle stop concluded, he went to the 34th Precinct stationhouse to file a complaint regarding his vehicle being stopped by Det. D'Ambrosio and PO Gilson. There he spoke with PO Ferguson and he told PO Ferguson that he wanted to file a complaint. PO Ferguson gave § 87(2)(b) the CCRB's phone number and told him that if he wanted to file a complaint, he would need to call the CCRB. PO Ferguson did not give § 87(2)(b) the opportunity to file the complaint at the stationhouse (**Board Review 01**).

During his CCRB statement, PO Ferguson initially stated that the individuals entered the stationhouse and stated solely that they wanted to file a lawsuit. He added that he approached them and asked them if they want to file a complaint, but they reiterated that they wanted to file a lawsuit. He then gave the individuals the CCRB's phone number.

When asked during his CCRB interview if he was told by the individuals that they wanted to file a complaint and if he responded to the statement by saying, "Are you sure you want to do that? You know how that process goes," PO Ferguson said yes. He was asked one more time, and he affirmed his answer. PO Ferguson then changed his answer one more time and stated that the individuals only told him that they wanted to file a lawsuit, not a complaint. He stated that he did not recall saying, "Are you sure you want to do that? You know how that process goes."

In Video 1 of 4 provided to the CCRB by § 87(2)(b) PO Ferguson approached § 87(2)(b) and said, "You said you wanted to make a complaint, right? You have to call the CCRB" (**Board Review 18**). When presented that portion of the video and asked if it refreshed his memory regarding who brought up filing a complaint, he stated that he did not recall any details of the conversation or who brought up the action of filing a complaint at the stationhouse (**Board Review 06**).

Patrol Guide Procedure 207-31 (Board Review 17). When a civilian attempts to file a complaint in person at the stationhouse, the officer receiving the complaint must give the complainant a copy of the Civilian Complaint Report to be prepared in their own hand writing.

§ 87(2)(g)

it is recommended that **Allegation Q** be *substantiated*.

Allegation (R) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson refused to provide his name to § 87(2)(b)

Allegation (S) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Kevin Ferguson refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that just before leaving the stationhouse, he requested PO Ferguson's name and shield number, but PO Ferguson did not provide it (**Board Review 01**).

Neither § 87(2)(b) nor § 87(2)(b) cooperated with the investigation.

When asked during his CCRB statement, PO Ferguson stated that neither § 87(2)(b) or any of the other individuals asked for his name or shield number (**Board Review 06**).

Sergeant Jose Salas, also of the 34th Precinct, did not recall which officer spoke with § 87(2)(b) and § 87(2)(b) when they entered the stationhouse (**Board Review 12**). He was at the command desk when they entered and was at a distance where he can hear the conversation. To his knowledge, the individuals only requested Det. D'Ambrosio and PO Gilson's name and shield number.

None of the video footage provided to the CCRB captured this portion of the incident.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that Allegations R and S be *unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 22**).
- § 87(2)(b) has been party to two complaints and has been named a victim in 13 allegations (**Board Review 23**):
 - § 87(2)(b)
- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 24**).
- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 25**).
- Det. Louis D'Ambrosio has been a member of service for 15 years and has been a subject in seven CCRB complaints and 25 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer James Gilson has been a member of service for 15 years and has been named a subject in two CCRB cases and five allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Edward O'Connell has been a member of service for 23 years and has been named the subject in seven CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Sicelin Ortiz has been a member of service for six years and has been named a subject in six CCRB complaints and seven allegations, of which four were substantiated:
 - CCRB Case number 201703230 involved two substantiated allegations of Abuse of Authority – Other and one substantiated allegation of Discourtesy – Word. The Board recommended Command Discipline A, but the NYPD has not yet imposed discipline.
 - CCRB Case number 201707130 involved one substantiated allegation of Abuse of Authority – Premises entered and/or searched. The Board recommended Command Discipline A and the NYPD imposed Formalized Training.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of December 28, 2018, the Notice of Claim Inquiry with the NYC Comptroller's Office is still pending.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date